



## **DECISION**

Complaint No. : POS/35/KE/2025

Name and Address of the Complainant : Mr. Muhammad Naeem Suleri, R/o House No. A-105, 2<sup>nd</sup> Floor, Block-15, Gulistan-e-Jauhar, Karachi.

Name of the Agency Complained against : Sindh Board Technical Education Karachi (SBTEK)

Name & Designation of Investigation Officer : Syed Farrukh Habib  
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED NON-PAYMENT OF SERVICE DUES TO THE COMPLAINANT (EX-DEPUTY SECRETARY, SBTEK) WHO RETIRED FROM GOVERNMENT SERVICE ON 31.08.2024.**

### **THE COMPLAINT**

Mr. Muhammad Naeem Suleri, in his complaint dated 24.12.2024 stated that after completion of about (35) years qualifying service with the Sindh Board of Technical Education, he retired as Deputy Secretary (BS-18) on attaining the age of superannuation on 31.08.2024. However, after lapse of four months his final dues like Commutation, Encashment of L.P.R & G.P. Fund have not been paid. He stated that he has also submitted an application on 07.10.2024 to the Chairman for release of his final dues, but there has been no response. He, therefore, solicited interventions of this office in the matter.

### **PROCEEDINGS**

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response, Law Officer, SBTEK vide letter dated 14.05.2025, stated that complainant is a retired officer who served in capacity of Deputy Secretary (BS-18) and his Pension is being disbursed every month uninterruptedly. His service benefits are with-held due to the reason that an enquiry is being conducted regarding procurement and installation of On-Grid Solar System Net Metering in the responding agency. Since complainant was the convener of procurement committee, so for any irregularities in installation of On-Grid Solar System Net Metering, he was required to be questioned by the enquiry committee constituted in this regard. The Agency's report added that Enquiry committee's report is awaited, as convener / members were busy in conducting examinations and most probably the enquiry committee will meet after 10<sup>th</sup> May, 2025.

3. The complainant in his rejoinder dated 26.05.2025 stated that said enquiry is not against him as it is a general enquiry in which whole procurement committee including the then Secretary and Chairman are also involved. Mr. Arbab Thaheem, who is Member/Secretary of the committee has deliberately delayed his case for release of service benefits and also to misguide the convener and other members of the enquiry committee.

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4. To investigate the matter in detail the Investigation Officer fixed the case for hearing on 01.07.2025, attended by Mr. Faheem Mehmood, Law Officer, SBTE. Agency was required to file reply to comments of complainant on Agency's report. The Agency was asked to quote as under which rule the service dues of complainant were withheld even after one year of his retirement, especially when the three enquiry committees formed successively since March 2024, have not been able to complete the assigned task. The Law Officer had sought time to file reply. The Law Officer stated that presence of Mr. Arbab (Ex-Secretary, who held the charge when committee was formed) need be called to appear and explain why the Enquiry not yet concluded and under what law the dues of complainant not processed.

5. In the hearing held on 26.08.2025, Mr. Arbab Ali, Registrar, S.B.T.E, and Mr. Faheem Mahmood, Law Officer, SPTE attended. The Law Officer furnished report that the Secretary/ SBTE has obtained approval of BoG for formation of new enquiry committee to probe into the alleged wrong doings in procurement of solar system. Such committee though has been tasked to complete enquiry in 15 days but it is really unlikely. Hence, waiting for the outcome of 2<sup>nd</sup> enquiry committee amounts to penalize the complainant.

#### FINDING

6. I have examined the case file, perused correspondence, reports, rejoinders etc, and observed that:

- i. The complainant, Mr. Muhammad Naeem Suleri, retired as Deputy Secretary (BS-18), SBTEK on 31.08.2024. His pension is being disbursed regularly; however, final dues such as Commutation, LPR Encashment, and G.P. Fund have been withheld on account of an enquiry regarding installation of an On-Grid Solar System, when he served as convener of the procurement committee.
- ii. The complainant clarified that the said enquiry is general in nature and not directed against him individually. The Agency, despite formation of a new enquiry committee, failed to conclude the matter or cite any lawful authority justifying withholding of his retirement benefits.
- iii. The prolonged delay without formal charges or orders of the competent authority constitutes clear maladministration, as post-retirement dues are a vested right and cannot be withheld merely due to an inconclusive internal enquiry.
- iv. As per settled law, the pensionary benefits cannot be stopped on account of any charges; and is violative to the law laid down by the Honorable Supreme Court in the case of Haji Mohammad Ismail Memon, PLD 2007 SC 35 as well as in C.P No. D-163 of 2014 and C.P No. 340 of 2018.

#### DECISION

7. In view of the above and in exercise of powers conferred upon me vide Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), I direct the Chairman, Sindh Board of Technical Education (SBTEK) to ensure immediate processing and release of the complainant's lawful post-retirement dues, including Commutation, Encashment of LPR, and G.P. Fund, etc.

*Given under my hand and seal of the office*



*Sd /-*  
(Muhammad Sohail Rajput)  
Sitara-e-Imtiaz. PAS  
Ombudsman Sindh

Karachi, dated 17.12.2025